

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CUNP043455: JOSEPH T. VASQUEZ vs LINDA L. NORIEGA
08/25/2026 in Department 43
Motion to Strike Plaintiff's Untimely Third Amended Complaint**

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Defendant Linda L. Noriega's Motion to Strike Plaintiff's Third Amended Complaint

Tentative Ruling: Defendant Linda L. Noriega's Motion to Strike Plaintiff's Third Amended Complaint is GRANTED, however, the Second Amended Complaint remains as the operative pleading. The Third Cause of Action of the Second Amended Complaint is ordered stricken.

Because the demurrer to the Third Cause of Action of the Second Amended Complaint was sustained with leave to amend on February 25, 2026, and the Third Amended Complaint was not filed until May 28, 2026, 76 days after the deadline for filing set by the Court, the Third Cause of Action of the Second Amended Complaint is ordered stricken. Plaintiff did not seek leave of Court for the late filing and has not established good cause for the delay.

Moving party is ordered to serve notice of the Court's ruling.